3 October 2025

Submission to the Joint Standing Committee on Electoral Matters Inquiry into the 2025 Federal Election

Global Shield Australia welcomes this opportunity to contribute to the Joint Standing Committee on Electoral Matters' (**JSCEM**) Inquiry into the 2025 Federal Election (the **Inquiry**). A resilient and trusted electoral system is the bedrock of Australian democracy. This Inquiry is an important opportunity to ensure that Australia's electoral system is prepared for a rapidly evolving threat landscape.

Global Shield Australia is an independent, non-profit organisation dedicated to strengthening Australia's resilience against and preparedness for emergencies, crises, and disasters, including those that may undermine or disrupt our democratic and electoral processes.

Our submission focuses on two specific areas central to the Inquiry's Terms of Reference:

1. **Ensuring universal voter access:** examining how we ensure that Australia's democratic system remains resilient to emerging global and domestic threats, including of catastrophic disasters and emergencies; and
2. **Addressing threats of interference in our electoral system:** highlighting the risk posed by, and impact of, artificial intelligence (**AI**) on democratic and electoral processes, including AI-enhanced threats to electoral integrity and public trust, and the potential influence of AI chatbots on political views.

The Australian Electoral Commission (**AEC**) has also previously recognised the potential for disasters and malign interference to disrupt its work.[1] This Inquiry also follows the 2024 Strengthening Democracy Taskforce which acknowledged the "*new constellation of challenges to Australia's democracy*" (see Box 1).[2]

While our electoral system performed well in 2025, this should not give us a false sense of security. The worst potential threats did not materialise, but there were clear warning signs of a challenging future on the horizon. Next time we may not be so fortunate.

As such, now is the time to invest in resilience and preparedness to proactively strengthen Australia's electoral framework and safeguard our democracy against an uncertain future.

[1] Australian Electoral Commission, *Delivering the 2022 Federal Election* (March 2022) 3.
[2] Department of Home Affairs Strengthening Democracy Taskforce, *Strengthening Australian Democracy: A Practical Agenda for Democratic Resilience* (2024) 26.

<u>Box 1</u>. The "*constellation of challenges*" to Australia's democracy

The 2024 Strengthening Democracy Taskforce under the Department of Home Affairs identified a range of challenges to Australia's democracy. These challenges were:

- Dissatisfaction with government and governing;
- Foreign interference;
- Social media and digital platforms;
- Misinformation and disinformation;
- Polarisation and division;
- Inequality; and
- Artificial intelligence (including its threat to representation, accountability and trust).

While many of these challenges are not entirely novel, the Taskforce found that "*in combination they pose complex and compounding threats to democracy*." These challenges are also only increasing. As the Taskforce's report states "*Global shocks and geopolitical shifts, natural disasters and extreme weather events, pandemics and compounding socio-economic trends are defining the present era of instability and uncertainty*".

A. Safeguarding elections in an era of catastrophic disasters

The operating environment for Australian elections is changing. As the National Climate Risk Assessment highlighted, Australia is likely to *"experience more compounding, cascading and concurrent [climate] hazards in the future"*.[3] Natural disasters displace communities, destroy infrastructure, and disrupt communications. They can also directly threaten the ability of Australians to fully participate in elections.

This reality was clear during the 2025 election period:

(a) **Tropical Cyclone Alfred** brought damaging winds, coastal erosion, flooding and large-scale power outages to south-east Queensland and north-east New South Wales just weeks before the election was held. Indeed, the disruption might have contributed to a delay in calling the election;[4] and

(b) Mere weeks after the election, **severe flooding in New South Wales** left five people dead and required the activation of assistance at both the State and Federal levels.[5]

If the timing of either of these events had shifted slightly, they could have greatly complicated the ability of these regions to cast their votes and participate in the electoral process.[6]

The AEC has previously acknowledged Australia's exposure to disasters and their potential to undermine electoral processes.[7] JSCEM's 2021 Inquiry on the Future Conduct of Elections Operating During Times of Emergency Situations also led to important changes in Australia's electoral laws to ensure the Electoral Commissioner could respond to an emergency impacting an electoral event.[8]

While those 2021 amendments were useful first steps towards electoral resilience, it is now critical that these are built on by:

(a) Evaluating the implementation of the 2021 electoral law amendments, in particular what:

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[3] Australian Climate Services, *Australia's National Climate Risk Assessment: An Overview* (2025) 10.
[4] Jacob Greber, "Cyclone Alfred looks to be final barrier to Anthony Albanese calling April 12 election", *ABC News*, 3 March 2025.
[5] Josefine Ganko, "NSW flooding as it happened: Mid North Coast, Hunter regions battered by heavy rainfall; Evacuation orders issued as Manning River levels break almost 100-year record", *The Sydney Morning Herald*, 21 May 2025.
[6] As noted in the AEC's report on the 2025 Federal Election, these weather events did affect some staff and premises, the impact of which was managed successfully, see Australian Electoral Commission, *2025 Federal Election Report* (2025) 49.
[7] Australian Electoral Commission, *Delivering the 2022 Federal Election* (March 2022) 3.
[8] Joint Standing Committee on Electoral Matters, *Report of the Inquiry on the Future Conduct of Elections Operating During Times of Emergency Situations* (June 2021); and the *Electoral Legislation Amendment (Contingency Measures) Act 2021*.

(i) Plans are in place for when and how the AEC's emergency powers might be utilised or might have been utilised if needed during the 2025 Federal Election, including consideration of their interaction with other emergency plans and powers;[9] and

(ii) Exercises, stress-testing, or scenario planning more broadly has or needs to be undertaken to determine whether the AEC has sufficient powers and capabilities needed to perform its functions during an emergency; and

(b) Examining whether the decision not to include State and Territory declarations of emergency as triggers for the Electoral Commissioner's new authorities in the 2021 electoral law amendments remains appropriate or should be reconsidered.

While it may not be possible for JSCEM to comprehensively address these matters in this Inquiry, it could recommend that a future JSCEM inquiry or other review mechanism be undertaken to allow for proper consideration of the above. This should include a review of the AEC's disaster and emergency contingency planning (including its interaction with the National Emergency Management Agency's work and existing crisis management plans).

Proposed Recommendation 1: The Government should undertake a review into the implementation of the 2021 electoral law amendments, existing plans for the activation and use of the AEC's emergency powers (and their interaction with other emergency plans and powers), and the use of exercises and stress-tests to ensure the powers and plans are sufficient.

[9] See Department of Prime Minister and Cabinet, *Australian Government Crisis Management Framework* (September 2025).

B. Electoral integrity and artificial intelligence

Rapid advances in AI presents a profound threat to electoral integrity. Malicious actors and lone wolves can now use AI to generate highly convincing fake content (deepfakes), automate mis- and disinformation campaigns, and micro-target deceptive messaging at an unprecedented speed and scale.

As noted by the Director-General of the Australian Security Intelligence Organisation ahead of the 2025 election, the vote was going to be held in a security environment "*characterised by eroded trust in institutions, mis- and disinformation, incidents of politically motivated violence and attempts at foreign interference*".[10] The 2024 Strengthening Democracy Taskforce also explicitly noted the challenge posed by these technological changes.[11]

The AEC has worked with AI companies to prevent abuse of their products[12] and used its Electoral Integrity Assurance Taskforce to mitigate and minimise threats to election integrity. However, in its recent report on the 2025 Federal Election, the AEC also noted that one platform did not respond to its enquiries in regard to whether it would apply the global 'Tech Accord to Combat Deceptive Use of AI in 2024 Elections' to the Australian election.[13] The AC also stated that "*there were no regulatory tools that the AEC could use to specifically address harms to electoral integrity from AI*".[14]

While Australia was not seriously impacted by these threats in 2025,[15] we were targeted by foreign campaigns and experiences overseas show how these threats can materialise in the future. The potential avenues for disruption are not just hypothetical:

(a) **Pro-Russian influence operations:** Australia was targeted by pro-Russian influence operations during the 2025 election, which sought to poison AI chatbots with false narratives.[16]

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[10] National Intelligence Community, *ASIO Annual Threat Assessment 2025*, 19 February 2025.
[11] Department of Home Affairs Strengthening Democracy Taskforce, *Strengthening Australian Democracy: A Practical Agenda for Democratic Resilience* (2024) 33.
[12] Australian Electoral Commission, "AI & elections", 25 September 2025.
[13] See Australian Electoral Commission, *2025 Federal Election Report* (2025) 6.
[14] Ibid. See also the AEC's submission to the Select Committee on Adopting Artificial Intelligence from 10 May 2024, which said that: "*if a person seeks to disrupt a federal electoral event by using AI, the AEC only has limited powers to investigate or take action*".
[15] The AEC concluded that in relation to the 2025 Federal Election, "*the use of AI did not interfere with election delivery nor was it likely to have impacted Australians' trust in the results*", see Australian Electoral Commission, *2025 Federal Election Report* (2025) 5.
[16] Ange Lavoipierre and Michael Workman, "Pro-Russian influence operation targeting Australia in lead-up to election with attempt to 'poison' AI chatbots", *ABC News*, 3 May 2025.

(b) **AI-generated deepfake robocalls:** the 2024 New Hampshire primary saw the use of audio deepfakes of President Joe Biden discouraging Democrats from voting.[17]

(c) **Impacts in over 50 countries:** the New York Times has tracked evidence that AI has impacted elections in at least 50 countries including Canada, Poland and the United Kingdom.[18]

A further underappreciated threat to electoral integrity is the potential influence of highly persuasive AI chatbots on political views.[19] Recent research shows that advanced AI models can shift political opinions in under ten minutes of conversation, with effects that endure over time.[20]

These chatbots are often afforded undue trust by users while remaining opaque 'black boxes' to regulators. Their outputs are shaped by factors such as training data and design choices, and system prompts – none of which are subject to disclosure requirements. As a result, developers and deployers operate with minimal oversight, leaving open the possibility of both deliberate and accidental political bias influencing users.[21]

As AI tools are embedded more deeply into a broader number of internet platforms – in particular search engines like Google – the risk of political perspectives being subtly but systematically shaped by AI bias increases.

This risk arises both in relation to direct queries or conversations asking for voting recommendations (such as "*Should I vote for Candidate X?*"), and also indirectly in how AI models choose to answer even fact-based questions. For example, the way in which an AI model chooses to share quotes from a candidate when asked what they have said on a topic can shape a voter's view of that candidate.

This type of influence is essentially unrepeatable for investigators and regulators, as it will be relatively unique for each user in each circumstance given the generative nature of these AI systems. Without transparency and accountability, Australia faces a growing risk of inappropriate or covert influence on voters' views and choices.

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[17] Shannon Bond, "A political consultant faces charges and fines for Biden deepfake robocalls", *NPR*, 23 May 2024.
[18] Steven Lee Myers and Stuart A. Thompson, "A.I. Is Starting to Wear Down Democracy", *New York Times*, 26 June 2025.
[19] David Nield, "AI Chatbots Have a Political Bias That Could Unknowingly Influence Society", *Science Alert*, 11 September 2024.
[20] Melissa Heikkila, "How AI chatbots can change your mind in under 10 minutes", *Australian Financial Review*, 15 August 2025; Stefan Milne, "With just a few messages, biased AI chatbots swayed people's political views", *UW News*, 6 August 2025.
[21] See, e.g., Jeremy Baum and John Villasenor, "The politics of AI: ChatGPT and political bias", *Brookings TechTank*, 8 May 2023; Fabio Y.S. Motoki et al, "Assessing political bias and value misalignment in generative artificial intelligence" (2025) 234 *Journal of Economic Behaviour & Organization* 106904; Sara Harrison, "Study finds perceived political bias in popular AI models", *Stanford Report*, 21 May 2025.

The 2024 Senate Select Committee on Adopting Artificial Intelligence recognised the threat from AI to Australia's democracy. While the Committee noted "*a range of processes*" were underway to address some of these threats at the time of its report[22] – the most significant of these, the introduction of mandatory guardrails for AI, now appears to have been significantly delayed or abandoned. The Committee also made several recommendations that remain largely unactioned, including that the Government:

(a) Undertakes "*a thorough review of potential regulatory responses to AI-generated political or electoral deepfake content, including mandatory codes applying to the developers of AI models and publishers including social media platforms, and prohibitions on the production or dissemination of political deepfake content during election periods*";

(b) Ensures "*that the mandatory guardrails for AI in high-risk settings also apply to AI systems used in an electoral or political setting*"; and

(c) Examine "*mechanisms, including education initiatives, to improve AI literacy for Australians, including parliamentarians and government agencies, to ensure Australians have the knowledge and skills needed to navigate the rapidly evolving AI landscape, particularly in an electoral context*".[23]

Further delay or taking a 'wait and see' approach is not a credible option to ensure Australia's democracy and electoral system is prepared for the technological changes currently underway. Action is needed now to prepare Australia for the serious threats associated with AI ahead of our next federal election.

Proposed Recommendation 2:

(a) The Government should amend election communication authorisation rules to mandate disclosure of the use of AI-generated or altered content, including this includes synthetically generated image, video, and audio content;

(b) The Government should consider requiring social media and AI companies to:

(i) disclose what mitigation measures they are putting in place to prevent their products being used for mis- and disinformation campaigns in Australia; and

(ii) provide reports around the use of their products during elections to prepare election-related materials (including attempted adversarial use[24]);

[22] Senate Select Committee on Adopting Artificial Intelligence, *Interim Report* (October 2024) [2.103].
[23] Ibid 33-34.
[24] See, e.g., Google's reporting on adversarial misuse of generative AI products, Google Threat Intelligence Group, "Adversarial misuse of Generative AI", 30 January 2025.

(c) **The Government should establish an AI literacy program for Australians, including parliamentarians, to ensure Australians have the knowledge and skills needed to navigate the rapidly evolving AI landscape, particularly in an electoral context;**

(d) **The Government should legislate mandatory guardrails for AI in Australia, including for its use in electoral and political settings; and**

(e) **The Government should establish a monitoring and reporting mechanism to enable the tracking and disclosure of AI harm and misuse, including in relation to misuse in an electoral context.[25] This would include mandatory reporting obligations on developers and deployers, and voluntary reporting options for users affected by inappropriate AI use.**

Conclusion

The threats covered in this submission are not speculative concerns about the future. They are current and growing challenges to the integrity and accessibility of elections in Australia.

Thankfully, Australia's 2025 Federal Election was not fully tested by the potential worst-case scenarios of natural disasters or AI-enabled influence and interference. However, it did provide timely reminders of the potential vulnerabilities and the need for us to plan and prepare our response.

Global Shield Australia urges JSCEM to ensure that the recommendations from this Inquiry move Australia towards a more resilient democratic future. By strengthening contingency planning for disasters and modernising our laws and capabilities to counter AI-driven threats, we can protect the foundational processes that allow Australians' voices to be heard.

Global Shield would welcome the opportunity to meet with the Committee or its staff to discuss this submission in further detail.

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[25] For further detail on such mechanisms see, Global Shield Australia, *Ensuring Accountability: The Need for Post-Deployment Monitoring of AI in Australia*, June 2025.